

		Plaintiff argues that the Complaint alleges similar fraud allegations as those found sufficient in <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal. App. 5th 828. However, the court in <i>Dhital</i>, relied upon the allegations that the plaintiffs “bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers.” (<i>Dhital, supra</i>, 84 Cal.App.5th 828, 844.)) Plaintiffs do not make allegations that the dealership they purchased the Subject Vehicle from is an agent of Defendant for purpose of sale of the Subject Vehicle to consumers. The allegation of an agency relationship between the dealership and manufacturer was a dispositive factor in overruling the demurrer in <i>Dhital</i>. Since no such allegation is present here, no transactional relationship is alleged, and therefore the FAC does not adequately a cause of action for fraud by concealment. <u>Leave to Amend</u> The Court notes that Plaintiff has already been granted leave to amend the complaint to remedy these same defects. However, there is still a reasonable possibility that another opportunity to amend the complaint could result in a viable cause of action. Additionally, since demurrer has been sustained because of a lack of detail in the pleading, leave to amend is warranted. (See <i>City of Stockton v. Superior Court</i> (2007) 42 Cal.4th 730, 747.) Defendant shall give notice.
57.	Said v. Kia America, Inc. 2024-01402528	Plaintiff Mark A. Said’s motion to compel further responses to his first set of requests for production is DENIED. Plaintiff has failed to properly notice the motion “within 45 days of the service of the verified response ... or on or before any specific later date to which the demanding party and the responding party have agreed in writing” (Code Civ. Proc., § 2031.310, subd. (c)), and has further failed to demonstrate good cause for the discovery sought by the subject demands. (<i>Id.</i>, § 2031.310, subd. (b)(1).)

	Specifically, plaintiff and defendant Kia America, Inc. agreed in writing to extend the 45-day deadline for this motion to 11/12/24. (Dayal Decl. at Ex. C [10/28/24 emails between Jordan Pratty and Munish Dayal, “confirming that [plaintiff] ha[s] until November 12, 2024 as an extension of time to file a motion to compel”].) Plaintiff, however, served and filed only an incomplete set of moving papers by 11/12/24. (See ROA Nos. 17, 23.) Plaintiff’s notice of motion and moving papers expressly rely in part on a “Separate Statement filed herewith,” but the motion was not accompanied by a separate statement at the time it was served and filed on 11/12/24. (Ntc. of Mtn., p. 2; see Mtn. P&As at pp. 5-6 [“As set forth in the accompanying Separate Statement, Defendant’s responses to Requests for Production are in violation of Code of Civil Procedure § 2031.210, and 2031.280(a)”]; see also ROA No. 21 [separate statement, attached proof of service].) Instead, plaintiff did not serve his separate statement in support of this motion until 11/14/24 at 8:00 p.m., two days after the deadline to bring the motion had passed. (ROA No. 21.) Serving a motion to compel further responses to discovery “without the supporting papers identified therein render[s] the motion untimely.” (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 321.) When a discovery motion is untimely a showing of “[p]rejudice is not required; discovery deadlines are mandatory and we have treated them as jurisdictional....” (<i>Weinstein v. Blumberg, supra</i>, 25 Cal.App.5th at p. 322, fn. 3; see <i>Vidal Sassoon, Inc. v. Sup. Ct. (Halpern)</i> (1983) 147 Cal.App.3d 681, 685 [the court acts in excess of jurisdiction by considering an untimely motion to compel further response].) Furthermore, even if the motion was timely, plaintiff has also failed to set forth specific facts showing good cause justifying the discovery sought by the subject requests. (See Code Civ. Proc., § 2031.310, subd. (b)(1); <i>Glenfed Develop. Corp. v. Superior Court</i>
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